

OPTIONS 7 PRICING SCHEDULE

Section 1. General Provisions

(a) Removal of Days for Purposes of Pricing Tiers:

(1) **(A)** Any day that the Exchange announces in advance that it will not be open for trading will be excluded from the options tier calculations set forth in its Pricing Schedule; and **(B)** any day with a scheduled early market close ("Scheduled Early Close") may be excluded from the options tier calculations only pursuant to paragraph (3) below.

(2) The Exchange may exclude the following days ("Unanticipated Events") from the options tier calculations only pursuant to paragraph (3) below, specifically any day that: **(A)** the market is not open for the entire trading day, **(B)** the Exchange instructs members in writing to route their orders to other markets, **(C)** the Exchange is inaccessible to members during the 30-minute period before the opening of trade due to an Exchange system disruption, or **(D)** the Exchange's system experiences a disruption that lasts for more than 60 minutes during regular trading hours.

(3) If a day is to be excluded as a result of paragraph (1)(B) or (2) above, the Exchange will exclude the day from any member's monthly options tier calculations as follows:

(A) the Exchange may exclude from the ADV calculation any Scheduled Early Close or Unanticipated Event; and

(B) the Exchange may exclude from any other applicable options tier calculation provided for in its Pricing Schedule (together with (3)(A), "Tier Calculations") any Scheduled Early Close or Unanticipated Event.

provided, in each case, that the Exchange will only remove the day for members that would have a lower Tier Calculation with the day included.

(b) Fee Disputes. All fee disputes concerning fees which are billed by the Exchange must be submitted to the Exchange in writing and must be accompanied by supporting documentation. All fee disputes must be submitted no later than sixty (60) calendar days after receipt of a billing invoice.

(c) Definitions. For purposes of assessing fees, the following references should serve as guidance. Fees and rebates are listed per contract per leg unless otherwise noted.

An **"Affiliated Entity"** is a relationship between an Appointed Market Maker and an Appointed OFP for purposes of qualifying for certain pricing specified in the Pricing Schedule. Market Makers and OFPs are required to send an email to the Exchange to appoint their counterpart, at least 3 business days prior to the last day of the month to qualify for the next month. The Exchange will acknowledge receipt of the emails and specify the date the Affiliated Entity is eligible for applicable pricing, as specified in the Pricing Schedule. Each Affiliated Entity relationship will commence on the 1st of a month and may not be terminated prior to the end of any month. An Affiliated Entity relationship will automatically renew each month until or unless either party terminates earlier in writing by sending an email to the Exchange at least 3 business days prior to the last day of the month to terminate for the next month. Affiliated Members may not qualify as a counterparty comprising an Affiliated Entity. Each Member may qualify for only one (1) Affiliated Entity relationship at any given time.

An **"Affiliated Member"** is a Member that shares at least 75% common ownership with a particular Member as reflected on the Member's Form BD, Schedule A.

An **"Appointed Market Maker"** is a Market Maker who has been appointed by an OFP for purposes of qualifying as an Affiliated Entity.

An **"Appointed OFP"** is an OFP who has been appointed by a Market Maker for purposes of qualifying as an Affiliated Entity.

A **"Broker-Dealer"** order is an order submitted by a member for a broker-dealer account that is not its own proprietary account.

A **"Crossing Order"** is an order executed in the Exchange's Facilitation Mechanism, Solicited Order Mechanism, Price Improvement Mechanism or submitted as a Qualified Contingent Cross order. For purposes of this Pricing Schedule, orders executed in the Block Order Mechanism are also considered Crossing Orders.

An **"Exposed Order"** is an order that is broadcast via an order exposure alert as described within Options 5, Section 4 (Order Routing). Unless otherwise noted in Options 7, Section 3 pricing, Exposed Orders will be assessed the applicable "Taker" Fee and any order or quote that executes against an Exposed Order during a Route Timer will be paid/assessed the applicable "Maker" Rebate/Fee.

A **"Firm Proprietary"** order is an order submitted by a member for its own proprietary account.

A **"Non-Nasdaq GEMX Market Maker"** is a market maker as defined in Section 3(a)(38) of the Securities Exchange Act of 1934, as amended, registered in the same options class on another options exchange.

"Non-Penny Symbols" are options overlying all symbols excluding Penny Symbol.

"Non-Priority Customers" include Market Makers, Non-Nasdaq GEMX Market Makers (FarMMs), Firm Proprietary / Broker-Dealers, and Professional Customers.

An **"Order Flow Provider"** ("OFP") is any Member, other than a Market Maker, that submits orders, as agent or principal, to the Exchange.

"Penny Symbols" are options overlying all symbols listed on Nasdaq GEMX that are in the Penny Interval Program.

A **"Priority Customer"** is a person or entity that is not a broker/dealer in securities, and does not place more than 390 orders in listed options per day on average during a calendar month for its own beneficial account(s), as defined in Nasdaq GEMX Options 1, Section 1(a)(36). Unless otherwise noted, when used in this Pricing Schedule the term "Priority Customer" includes "Retail" as defined below.

A **"Professional Customer"** is a person or entity that is not a broker/dealer and is not a Priority Customer.

A **"Regular Order"** is an order that consists of only a single option series and is not submitted with a stock leg.

"Responses to Crossing Order" is any contra-side interest (i.e., orders & quotes) submitted after the commencement of an auction in the Exchange's Facilitation Mechanism, Solicited Order Mechanism, Block Order Mechanism or Price Improvement Mechanism.

A **"Retail"** order is a Priority Customer order that originates from a natural person, provided that no change is made to the terms of the order with respect to price or side of market and the order does not originate from a trading algorithm or any other computerized methodology.

(d) Unrelated Market or Marketable Interest Pricing

The below applies to orders in Penny Symbols and Non-Penny Symbols (excluding Index Options)* executed in the Exchange's Facilitation Mechanism ("FAC Order"), Solicited Order Mechanism ("SOL Order"), and Price Improvement Mechanism ("PIM Order").

(1) The FAC Order or SOL Order executes against unrelated market or marketable interest received **during** an auction:

(A) The FAC Order or SOL Order will be assessed the applicable Fees for Crossing Orders (excluding PIM Orders) in Section 3 below.

(B) The unrelated market or marketable interest received during an auction will be assessed the applicable Fees for Responses to Crossing Orders (excluding PIM Orders) in Section 3 below.

(2) The PIM Order executes against unrelated market or marketable interest received **during** an auction:

(A) The PIM Order will be assessed the applicable Fees for PIM Orders in Section 3, note 11 below.

(B) The unrelated market or marketable interest received during an auction will be assessed the applicable Fees for Responses to PIM Orders in Section 3, note 12 below.

(3) The FAC Order, SOL Order, or PIM Order executes against unrelated market or marketable interest received **prior** to the commencement of an auction:

(A) The FAC Order, SOL Order, or PIM Order would be subject to the applicable taker pricing in Section 3 below.

(B) The unrelated market or marketable interest received prior to the commencement of an auction will be assessed the applicable maker pricing in Section 3 below.

* All transactions in Index Options are subject to separate pricing in Section 3 below.

Adopted September 12, 2018 (SR-GEMX-2018-29); amended December 21, 2018 (SR-GEMX-2018-45); amended June 27, 2019 (SR-GEMX-2019-08); amended Dec. 9, 2019 (SR-GEMX-2019-18); amended July 1, 2020 (SR-GEMX-2020-17); amended July 14, 2020 (SR-GEMX-2020-18); amended Oct. 3, 2022 (SR-GEMX-2022-09); amended Jan. 23, 2023 (SR-GEMX-2023-02), operative Feb. 22, 2023; amended Apr. 10, 2023 (SR-GEMX-2023-05); amended Feb. 28, 2023 (SR-GEMX-2023-04), operative Mar. 30, 2023; amended Oct. 23, 2023 (SR-GEMX-2023-13); amended Jan. 23, 2023 (SR-GEMX-2023-02), operative Nov. 13, 2023; amended Nov. 30, 2023 (SR-GEMX-2023-18), operative Dec. 1, 2023; amended Dec. 8, 2023 (SR-GEMX-2023-20), operative Dec.

1, 2023.

Section 2. Collection of Exchange Fees and Other Claims

(a) Each Member, and all applicants for registration as such shall be required to provide a clearing account number for an account at the National Securities Clearing Corporation ("NSCC") for purposes of permitting the Exchange to debit any undisputed or final fees, fines, charges and/or other monetary sanctions or other monies due and owing to the Exchange or other charges related to General 2, Section 2; provided, however, that the fees set forth in Section 7 (Market Data) of the Exchange's Pricing Schedule shall be excluded from this Rule. If a Member disputes an invoice, the Exchange will not include the disputed amount in the debit if the Member has disputed the amount in writing to the Exchange's designated staff by the 15th of the month, or the following business day if the 15th is not a business day, and the amount in dispute is at least \$10,000 or greater.

[Adopted September 12, 2018 (SR-GEMX-2018-29); amended June 27, 2019 (SR-GEMX-2019-08).]

Section 3. Regular Order Fees and Rebates

Penny Symbols

Market Participant	Maker Rebate: Tier 1 (15)	Maker Rebate: Tier 2 (15)	Maker Rebate: Tier 3 (15)	Maker Rebate: Tier 4 (15)	Taker Fee: Tier 1 (4)(15)	Taker Fee: Tier 2 (4)(15)	Taker Fee: Tier 3 (4)	Taker Fee: Tier 4 (4)	Fee for Crossing Orders (excluding PIM) (1)(11)	Fee for Responses to Crossing Orders (excluding PIM) (12)
Market Maker ⁽²⁾⁽³⁾⁽⁵⁾	(\$0.20)	(\$0.30)	(\$0.37)	(\$0.39)	\$0.50	\$0.50	\$0.50 ^{17,18}	\$0.49 ^{17,18}	\$0.20	\$0.50
Non-Nasdaq GEMX Market Maker (FarMM) ⁽³⁾	(\$0.20) ⁽⁷⁾	n/a	n/a	n/a	\$0.50	\$0.50	\$0.50 ^{17,18}	\$0.49 ^{17,18}	\$0.20	\$0.50
Firm Proprietary / Broker-Dealer ⁽³⁾	(\$0.20) ⁽⁷⁾	n/a	n/a	n/a	\$0.50	\$0.50	\$0.50	\$0.49	\$0.20	\$0.50
Professional Customer ⁽³⁾	(\$0.20) ⁽⁷⁾	n/a	n/a	n/a	\$0.50	\$0.50	\$0.50	\$0.49	\$0.20	\$0.50
Priority Customer ⁽³⁾⁽⁵⁾ (13)	(\$0.35)	(\$0.48)	(\$0.53)	(\$0.53) ¹⁹	\$0.48	\$0.48	\$0.44	\$0.42	\$0.00	\$0.50

Non-Penny Symbols (Excluding Index Options)⁽⁶⁾

Fee for

Market Participant	Maker Rebate: Tier 1	Maker Rebate: Tier 2	Maker Rebate: Tier 3	Maker Rebate: Tier 4	Taker Fee: Tier 1 (4)(16)	Taker Fee: Tier 2 (4)(16)	Taker Fee: Tier 3 (4)(16)	Taker Fee: Tier 4 (4)(16)	Fee for Crossing Orders (excluding PIM) ⁽¹⁾⁽¹¹⁾	Responses to Crossing Orders (excluding PIM) ⁽¹²⁾
Market Maker ⁽²⁾⁽³⁾ (5)	(\$0.40)	(\$0.45)	(\$0.75)	(\$0.75)	\$0.99	\$0.99	\$0.99	\$0.94	\$0.20	\$1.10
Non-Nasdaq GEMX Market Maker (FarMM) ⁽³⁾	(\$0.25)	n/a	n/a	n/a	\$0.99	\$0.99	\$0.99	\$0.94	\$0.20	\$1.10
Firm Proprietary / Broker-Dealer ⁽³⁾	(\$0.25)	n/a	n/a	n/a	\$0.99	\$0.99	\$0.99	\$0.94	\$0.20	\$1.10
Professional Customer ⁽³⁾	(\$0.25)	n/a	n/a	n/a	\$0.99	\$0.99	\$0.99	\$0.94	\$0.20	\$1.10
Priority Customer ⁽³⁾⁽⁵⁾⁽¹³⁾	(\$0.80)	(\$0.85)	(\$1.05)	(\$1.05)	\$0.85	\$0.85	\$0.85	\$0.82	\$0.00	\$1.10

Index Options⁽⁶⁾⁽⁹⁾⁽¹⁴⁾

Market Participant	Fee ⁽¹⁰⁾
Market Maker ⁽²⁾⁽²⁰⁾	\$0.75
Non-Nasdaq GEMX Market Maker (FarMM) ⁽²⁰⁾	\$0.75
Firm Proprietary / Broker-Dealer ⁽²⁰⁾	\$0.75
Professional Customer ⁽²⁰⁾	\$0.75
Priority Customer	\$0.50

1. Fees apply to the originating and contra order.
2. This fee applies to Nasdaq GEMX Market Maker orders sent to the Exchange by Electronic Access Members.
3. All market participants are eligible for lower Taker Fees based on achieving volume thresholds in Table 1 below. Members who do not achieve a higher Tier under Table 1 will be charged Tier 1 Taker Fees.
4. Non-Priority Customer orders will be charged the Taker Fee for trades executed during the Opening Process. Priority Customer orders executed during the Opening Process will receive the applicable Maker Rebate based on the tier achieved.
5. Market Maker and Priority Customer orders are eligible for higher Maker Rebates based on achieving volume thresholds in Table 1 below. Members who do not achieve a higher Tier under Table 1 will receive Tier 1 Maker Rebates.
6. The index options fees apply only to NDX. These fees are assessed to all executions in NDX.

7. An additional rebate of \$0.05 per contract will be paid for Non-Nasdaq GEMX Market Maker (FarMM), Firm Proprietary/Broker-Dealer and Professional Customer orders that qualify as MARS Eligible Contracts, pursuant to Options 7, Section 4B, and were routed through a qualifying GEMX Member's routing system. This rebate will be paid in addition to the Tier 1 Maker Rebate.
8. Reserved.
9. For transactions in NDX, a license surcharge of \$0.25 will be assessed to Non-Priority Customers. The license surcharge applies to all NDX executions, including executions of NDX orders that are routed to one or more exchanges in connection with the Options Order Protection and Locked/Crossed Market Plan.
10. This fee is not subject to tier discounts.
11. This fee is \$0.05 per contract for Priority Customer orders on the contra-side of a PIM auction and all Non-Priority Customer orders executed in the PIM. There is no fee for Priority Customer orders on the agency side of a PIM auction.
12. This fee is \$0.05 per contract for all Responses to Crossing Orders executed in the PIM.
13. Members who execute Priority Customer Maker volume of 0.07% or more of Customer Total Consolidated Volume in a given month and qualify for MARS will be eligible for a Priority Customer Maker Rebate of (\$0.48) per contract in Penny Symbols and a Priority Customer Maker Rebate of (\$1.00) per contract in Non-Penny Symbols. Priority Customer orders that qualify for this note 13 incentive and qualify for the tiered Priority Customer Maker Rebates above will receive the greater of the note 13 incentive or the applicable tiered Priority Customer Maker Rebate, but not both.
14. A surcharge of \$0.25 per contract will be assessed to all market participants for executions in NDX with a premium price of \$25.00 or greater.
15. Market Maker Tier 1 through Tier 4 Maker Rebates in Penny Symbols will be (\$0.38) per contract for the following option symbols: SPY, QQQ and IWM. Priority Customer Tier 1 through Tier 2 Taker Fees in Penny Symbols will be \$0.44 per contract for the following option symbols: SPY, QQQ and IWM.
16. Non-Priority Customer orders will be charged a Taker Fee of \$1.10 per contract for trades executed against a Priority Customer. Priority Customer orders will be charged a Taker Fee of \$0.85 per contract for trades executed against a Priority Customer.
17. Market Maker / Non-Nasdaq GEMX Market Maker (FarMM) in Tier 3 or 4 Penny Symbol Taker Fees in SPY will be decreased by \$0.01 per contract.
18. Tier 3 Penny Symbol Taker Fees for Market Makers and Non-Nasdaq GEMX Market Makers (FarMM) will be \$0.47 per contract when the Member is (i) both the buyer and the seller or (ii) the Member removes liquidity from another Member as an Affiliated Member or Affiliated Entity. Tier 4 Penny Symbol Taker Fees for Market Makers and Non-Nasdaq GEMX Market Makers (FarMM) will be \$0.45 per contract when the Member is (i) both the buyer and the seller or (ii) the Member removes liquidity from another Member as an Affiliated Member or Affiliated Entity. Further, in a given month, a Member would receive the pricing in either note 17 or note 18 with respect to SPY, whichever is more favorable, but not both.
19. Members, Affiliated Members, and Affiliated Entities that are eligible for the Tier 4 Priority Customer Maker Rebate for Penny Symbols will be paid an additional \$0.01 per contract Maker Rebate for each marginal contract of Customer add liquidity volume that was executed above 2.00% of Customer Total Consolidated Volume ("TCV"). For example, assuming 2.00% of 1,000,000,000 of Monthly Customer TCV (which results in 20,000,000 contracts), a Member would be paid additional rebates on executed contracts above 20,000,000 contracts.
20. A surcharge for NDX will be assessed to electronic simple Non-Priority Customer orders that remove liquidity according to the following premium schedule:

Less than \$3.00	\$1.00
Greater than or equal to \$3.00 and less than \$10.00	\$1.50
Greater than or equal to \$10.00 and less than \$25.00	\$2.00
Greater than or equal to \$25.00 and less than \$50.00	\$2.50
Greater than or equal to \$50.00	\$3.00

Qualifying Tier Thresholds

Table 1

Tier	Maker % of Customer Total Consolidated Volume
Tier 1	Executes Maker volume of less than 0.85% of Customer Total Consolidated Volume
Tier 2	Executes Maker volume of 0.85% to less than 1.2% of Customer Total Consolidated Volume
Tier 3	Executes Maker volume of 1.2% to less than 1.75% of Customer Total Consolidated Volume
Tier 4	Executes Maker volume of 1.75% or greater of Customer Total Consolidated Volume

- For purposes of measuring Total Affiliated Member or Affiliated Entity % of Customer Total Consolidated Volume, Customer Total Consolidated Volume means the total volume cleared at The Options Clearing Corporation in the Customer range in equity and ETF options in that month.
- The highest tier threshold attained above applies retroactively in a given month to all eligible traded contracts and applies to all eligible market participants.
- All eligible volume from Affiliated Members or an Affiliated Entity will be aggregated in determining applicable tiers for each of the Qualifying Tier Thresholds above in Table 1.
- The Maker % of Customer Total Consolidated Volume category includes all eligible market participant volume that adds liquidity in all symbols.

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Section 4. Other Options Fees and Rebates

A. Route-Out Fees¹.

Market Participant	Penny	Non-Penny
All Market Participants	\$0.60	\$1.20

¹. Fee applies to executions of orders that are routed to one or more exchanges in connection with the Options Order Protection and Locked/Crossed Market Plan.

B. Market Access and Routing Subsidy ("MARS") MARS System Eligibility

To qualify for MARS, a GEMX Member's routing system (hereinafter "System") would be required to: (1) enable the electronic routing of orders to all of the U.S. options exchanges, including GEMX; (2) provide current consolidated market data from the U.S. options exchanges; and (3) be capable of interfacing with GEMX's API to access current GEMX match engine functionality. Further, the Member's System would also need to cause GEMX to be the one of the top four default destination exchanges for (a) individually executed marketable orders if GEMX is at the national best bid or offer ("NBBO"), regardless of size or time or (b) orders that establish a new NBBO on GEMX's Order Book, but allow any user to manually override GEMX as a default destination on an order-by-order basis. Any GEMX Member would be permitted to avail itself of this arrangement, provided that its order routing functionality incorporates the features described above and satisfies GEMX that it appears to be robust and reliable. The Member remains solely responsible for implementing and operating its System.

MARS Eligible Contracts

MARS Payment would be made to GEMX Members that have System Eligibility and have routed the requisite number of Eligible Contracts daily in a month, which were executed on GEMX. For the purpose of qualifying for the MARS Payment, Eligible Contracts include the following: Non-Nasdaq GEMX Market Maker (FARMM), Firm Proprietary/Broker-Dealer and Professional Customer Orders that are executed. Eligible Contracts do not include qualified contingent cross or "QCC" Orders or Price Improvement Mechanism or "PIM" Orders. Options overlying NDX are not considered Eligible Contracts.

MARS Payment

GEMX Members that have System Eligibility and have executed the requisite number of Eligible Contracts in a month will be paid the following per contract rebates:

Tiers	Average Daily Volume ("ADV")	MARS Payment
1	10,000	\$0.08
2	15,000	\$0.11
3	20,000	\$0.14

The specified MARS Payment will be paid on all executed Eligible Contracts that add liquidity, which are routed to GEMX through a participating GEMX Member's System and meet the requisite Eligible Contracts ADV. No payment will be made with respect to orders that are routed to GEMX, but not executed.

A GEMX Member will not be entitled to receive any other revenue for the use of its System specifically with respect to orders routed to GEMX.

Adopted September 12, 2018 (SR-GEMX-2018-29); amended June 1, 2020 (SR-GEMX-2020-14); amended July 1, 2020 (SR-GEMX-2020-17); amended July 14, 2020 (SR-GEMX-2020-18); amended Oct. 3, 2022 (SR-GEMX-2022-09); amended Nov. 1, 2023 (SR-GEMX-2023-14); amended Dec. 15, 2025 (SR-GEMX-2025-34).

Section 5. Legal & Regulatory

A. Options Regulatory Fee

As of January 2, 2026, the ORF is \$0.0008 per contract side.

The Options Regulatory Fee ("ORF") is assessed by GEMX to each GEMX Member for options transactions cleared by The Options Clearing Corporation ("OCC") in the customer where: (1) the execution occurs on GEMX or (2) the execution occurs on another exchange and is cleared by a GEMX Member. The ORF is collected by OCC on behalf of GEMX from (1) GEMX clearing members for all customer transactions they clear or (2) non-members for all customer transactions they clear that were executed

on GEMX. GEMX uses reports from OCC when assessing and collecting ORF. The Exchange will notify Members via an Options Trader Alert of any change in the amount of the fee at least 30 calendar days prior to the effective date of the change.

Effective July 1, 2026, the ORF is \$0.0100 per contract side

The Options Regulatory Fee (“ORF”) is assessed by GEMX for options transactions cleared by The Options Clearing Corporation (“OCC”) in the customer range for executions that occur on GEMX. The ORF is collected by the OCC on behalf of the Exchange from either (1) a Member that was the clearing firm for the transaction or (2) a non-Member that was the clearing firm where a Member was the executing firm for the transaction. The Exchange will notify Members via an Options Trader Alert of any change in the amount of the fee at least 30 calendar days prior to the effective date of the change.

B. FINRA Web CRD Fees

These fees are collected and retained by FINRA via the Web CRD registration system for the registration of associated persons of member organizations of the Exchange that are not FINRA members. FINRA, on behalf of the Exchange, will bill and collect these fees.

General Registration Fees:

\$125-For each initial Form U4 filed for the registration of a representative or principal.

\$155-For the additional processing of each initial or amended Form U4, Form U5 or Form BD that includes the initial reporting, amendment or certification of one or more disclosure events or proceedings.

FINRA Annual System Processing Fee: for each registered representative and principal (annually, based on the number of securities regulators with which each such registered person is registered, excluding registration as an investment adviser representative):

Number of Securities Regulators	Fee
1-5	\$70
6-20	\$95
21-40	\$110
41 +	\$125

Fingerprint Processing Fees:

\$31.25-Initial Submission (Electronic)

\$41.25-Initial Submission (Paper)

\$20.000-Second Submission (Electronic)

\$30.00-Second Submission (Paper)

\$31.25-Third Submission (Electronic)

\$41.25-Third Submission (Paper)

\$30.00-FINRA Processing Fee for Fingerprint Results Submitted by Self-Regulatory Organizations other than FINRA.

Continuing Education Fee:

The Continuing Education Fee will be assessed as to each individual who is required to complete the Regulatory Element of the Continuing Education Requirements pursuant to Exchange General 4, Section 1240. This fee is paid directly to FINRA.

Maintaining Qualifications Program (“MQP”) Fee: \$100 fee for each individual electing to participate in the continuing education program under FINRA Rule 1240(c) for each year that such individual is participating in the program. Individuals who elect to participate in the program within two years from the termination of a registration would also be assessed any accrued annual fee. This fee is paid directly to FINRA.

\$25 Continuing Education Regulatory Element Session Fee for all Registrations. This fee will be assessed as to each individual who is required to complete the Regulatory Element of the Continuing Education Requirements pursuant to Exchange General 4,

Section 1240. This fee is paid directly to FINRA.

C. Reserved.

D. Application Fees

Primary Market Maker - \$3,000 per Firm (one time).

Competitive Market Maker - \$2,000 per Firm (one time).

Electronic Access Member - \$1,500 per Firm (one time).

Adopted September 12, 2018 (SR-GEMX-2018-29); amended February 1, 2019 (SR-GEMX-2019-01); amended June 27, 2019 (SR-GEMX-2019-08); amended August 9, 2021 (SR-GEMX-2021-08), operative October 1, 2021; amended November 5, 2021 (SR-GEMX-2021-10), operative January 2, 2022; amended Jan. 11, 2022 (SR-GEMX-2022-02), operative January 31, 2022; amended Jan. 20, 2022 (SR-GEMX-2022-03), operative Feb. 1, 2022; amended Nov. 29, 2022 (SR-GEMX-2022-12); amended Dec. 7, 2022 (SR-GEMX-2022-12); amended Dec. 22, 2022 (SR-GEMX-2022-14), operative Feb. 1, 2023; amended Jul. 25, 2023 (SR-GEMX-2023-09), operative Aug. 1, 2023; amended Oct. 15, 2024 (SR-GEMX-2024-37), operative Jan. 1, 2025; amended Nov. 27, 2024 (SR-GEMX-2024-42), operative Jan. 1, 2025; amended Jan. 28, 2025 (SR-GEMX-2025-05); amended Apr. 28, 2025 (SR-GEMX-2025-09); amended Jul. 17, 2025 (SR-GEMX-2025-17), operative Jan. 2, 2026; amended Jul. 1, 2025 (SR-GEMX-2025-15), operative Aug. 1, 2025; amended Sep. 5, 2025 (SR-GEMX-2025-24), operative Oct. 1, 2025; amended Dec. 31, 2025 (SR-GEMX-2025-38), operative Jan. 1, 2026; amended Dec. 19, 2025 (SR-GEMX-2025-36), operative Jan. 2, 2026; amended Jan. 9, 2026 (SR-GEMX-2026-02); amended Jun. 5, 2026 (SR-GEMX-2026-25), operative Jul. 1, 2026.

Section 6. Connectivity Fees

A. Access Fees

Electronic Access Member

\$200 per month per membership.

Market Maker

Primary Market Maker - \$200 per month per membership.

Competitive Market Maker - \$100 per month per membership.

B. CMM Trading Right Fees

\$850 per month for first trading right.

\$500 per month for each additional trading right.

C. Ports and Other Services

The below charges are assessed by GEMX for connectivity to GEMX.

A port is a logical connection or session that enables a market participant to send inbound messages and/or receive outbound messages from the Exchange using various communication protocols. Fees are prorated for the first month of service under this section. Upon cancellation, market participants are required to pay for service for the remainder of the month, regardless of whether it is the first month of service.

(i) The following order and quote protocols are available on GEMX.

(1) FIX Port Fee¹ \$650 per port, per month, per account number

(2) SQF Port Fee per port, per month as follows:

A Market Maker may not subscribe to more than 250 SQF Ports per month.

(3) SQF Purge Port Fee per port, per month as follows:

The SQF Port Fee and the SQF Purge Port Fee are aggregated for the below incremental tiers as follows:

Number of Ports	Monthly Fee Per Port
First 5 ports (1-5)	\$1,620 per port
Next 15 ports (6-20)	\$1,080 per port
All ports over 20 ports (21 and above)	\$540 per port

SQF Port and SQF Purge Fees will be discounted, on a monthly basis, by the percentage discount in the below table provided a market participant has transacted the requisite amount of Total National Volume in the prior month. The percentage of Total National Volume is calculated by taking the total Market Maker Penny Symbol and Market Maker Non-Penny Symbol volume (excluding index options) executed on the Exchange in the prior month and attributing a multiple of five times to that Non-Penny Symbol volume (numerator) and dividing that by Market Maker volume ("M" capacity at The Options Clearing Corporation ("OCC")) in multiply listed options across all options exchanges (denominator or Total National Volume).

Tier	Percentage of Total National Volume	Percentage SQF Port and SQF Purge Port Discount
1	less than 0.10%	0%
2	greater than or equal to 0.10% and less than 0.25%	10%
3	greater than or equal to 0.25% and less than 0.40%	30%
4	greater than or equal to 0.40%	50%

For example, a Market Maker that executed 3,000,000 in Penny Volume and 200,000 in Non-Penny Volume in a given month on the Exchange, where the Total National Volume was 1,000,000,000, would qualify for a discount of 50% on their SQF Port and SQF Purge Port fees ($(200,000 \times 5 = 1,000,000) + 3,000,000 = 4,000,000$ which is 0.40% of 1,000,000,000).

(4) OTTO Port Fee¹ \$650 per port, per month, per account number

(ii) The following order and execution information is available to Members.

(1) CTI Port Fee¹ \$650 per port, per month, per account number

(2) FIX DROP Port Fee¹ \$650 per port, per month, per account number

(iii) The following data ports fees apply in connection with data subscriptions pursuant to GEMX Rules at Section 7. These ports are available to non-GEMX Members and GEMX Members.

(1) Nasdaq GEMX Depth of Market Data Port \$0 per port, per month

(2) Nasdaq GEMX Order Feed Port \$0 per port, per month

(3) **Nasdaq GEMX Top Feed Port** \$0 per port, per month

(4) **Nasdaq GEMX Trades Feed Port** \$0 per port, per month

(iv) Other ports:

Disaster Recovery Port Fee¹ for ports in subsections (i) - (ii) \$50 per port, per month, per account number

Nasdaq Testing Facility Port Fee² \$0 per port, per month

¹ OTTO Port, CTI Port, FIX Port, FIX Drop Port and Disaster Recovery Port are subject to a monthly cap of \$7,500.

²The Nasdaq Testing Facility Port Fee is applicable to all ports within this Section 6C.

D. Reserved.

E. Reserved.

F. Reserved.

G. Reserved

H. Exchange Testing Facilities

Subscribers to the Testing Facility located in Carteret, New Jersey shall pay a fee of \$1,100 per hand-off, per month for connection to the Testing Facility. The hand-off fee includes either a 1Gb or 10Gb switch port and a cross connect to the Testing Facility. Subscribers shall also pay a one-time installation fee of \$1,100 per hand-off.

The connectivity provided under this rule also provides connectivity to the other markets of NASDAQ BX, Inc., Nasdaq PHLX LLC, The NASDAQ Stock Market LLC, Nasdaq MRX LLC, and Nasdaq ISE, LLC.

Adopted September 12, 2018 (SR-GEMX-2018-29); amended Sep. 1, 2022 (SR-GEMX-2022-08); amended Jan. 23, 2023 (SR-GEMX-2023-02), operative Feb. 22, 2023; amended Apr. 10, 2023 (SR-GEMX-2023-05); amended Feb. 28, 2023 (SR-GEMX-2023-04), operative Mar. 30, 2023; amended Jan. 23, 2023 (SR-GEMX-2023-02), operative Nov. 13, 2023; amended Nov. 28, 2023 (SR-GEMX-2023-16), operative Dec. 1, 2023; amended Dec. 5, 2023 (SR-GEMX-2023-19); amended Jan. 16, 2024 (SR-GEMX-2024-03); amended Mar. 1, 2024 (SR-GEMX-2024-05); amended Mar. 7, 2024 (SR-GEMX-2024-07); amended Apr. 29, 2024 (SR-GEMX-2024-09); amended May 1, 2024 (SR-GEMX-2024-10); amended Jun. 12, 2024 (SR-GEMX-2024-13); amended Jun. 27, 2024 (SR-GEMX-2024-15); amended Jul. 1, 2024 (SR-GEMX-2024-17); amended Jul. 24, 2024 (SR-GEMX-2024-20), operative Aug. 23, 2024; amended Aug. 26, 2024 (SR-GEMX-2024-32); amended Aug. 30, 2024 (SR-GEMX-2024-33); amended Oct. 11, 2024 (SR-GEMX-2024-38); amended Nov. 8, 2024 (SR-GEMX-2024-40); amended Dec. 20, 2024 (SR-GEMX-2024-46), operative Jan. 1, 2025; amended Jul. 22, 2025 (SR-GEMX-2025-18), operative Aug. 15, 2025; amended Aug. 26, 2025 (SR-GEMX-2025-22), operative Jan. 1, 2026; amended Dec. 16, 2025 (SR-GEMX-2025-35), operative Jan. 1, 2026.

Section 7. Market Data

A. Nasdaq GEMX Order Feed¹

Internal Use Only.

\$790 (op. 1/1/25); \$820 (op. 1/1/26); \$835 (op. 1/1/27) per month per distributor.* There are no controlled device fees for internal use.

External Redistribution.

\$790 (op. 1/1/25); \$820 (op. 1/1/26); \$835 (op. 1/1/27) per month per distributor. \$5 per month per external controlled device.** Each distributor's combined maximum fee for external redistribution is capped at \$1,050 (op.

1/1/25); \$1,095 (op. 1/1/26); \$1,115 (op. 1/1/27) per month.

Internal and External Redistribution.

\$790 (op. 1/1/25); \$820 (op. 1/1/26); \$835 (op. 1/1/27) per month per distributor. \$5 per month per external controlled device. Each distributor's combined maximum fee for both internal and external redistribution is capped at \$1,050 (op. 1/1/25); \$1,095 (op. 1/1/26); \$1,115 (op. 1/1/27) per month.

* A distributor is any firm that receives the Nasdaq GEMX Order Feed directly from Nasdaq GEMX or indirectly through a redistributor and then distributes it either internally or externally. A redistributor includes market data vendors and connectivity providers such as extranets and private network providers.

** An external controlled device is any device that a distributor of the Nasdaq GEMX Order Feed permits an external user to access the information in the Nasdaq GEMX Order Feed.

B. Nasdaq GEMX Top Feed

Professional (internal use only).

\$1,055 (op. 1/1/25); \$1,095 (op. 1/1/26); \$1,120 (op. 1/1/27) per month per distributor.* \$5 per month per controlled device.** Each distributor's combined maximum fee for internal redistribution is capped at \$1,315 (op. 1/1/25); \$1,370 (op. 1/1/26); \$1,400 (op. 1/1/27) per month.

Professional (external redistribution).

\$1,055 (op. 1/1/25); \$1,095 (op. 1/1/26); \$1,120 (op. 1/1/27) per month per distributor. \$5 per month per controlled device. Each distributor's combined maximum fee for external redistribution is capped at \$1,580 (op. 1/1/25); \$1,645 (op. 1/1/26); \$1,680 (op. 1/1/27) per month.

Professional (internal and external redistribution).

\$1,055 (op. 1/1/25); \$1,095 (op. 1/1/26); \$1,120 (op. 1/1/27) per month per distributor. \$5 per month per controlled device. Each distributor's combined maximum fee for both internal and external redistribution is capped at \$1,580 (op. 1/1/25); \$1,645 (op. 1/1/26); \$1,680 (op. 1/1/27) per month.

Non-Professional (external redistribution through a controlled device).

\$1,000 per month per distributor. There are no monthly controlled device fees.

* A distributor is any firm that receives the Nasdaq GEMX Top Feed directly from Nasdaq GEMX or indirectly through a redistributor and then distributes it either internally or externally. A redistributor includes market data vendors and connectivity providers such as extranets and private network providers.

** A controlled device is any device that a distributor of the Nasdaq GEMX Top Feed permits to access the information in the Nasdaq GEMX Top Feed.

C. Nasdaq GEMX Real-time Depth of Market Raw Data Feed

Professionals (internal use only).

\$1,580 (op. 1/1/25); \$1,640 (op. 1/1/26); \$1,680 (op. 1/1/27) per month per distributor.* \$10 per month per controlled device.** Each distributor's combined maximum fee is capped at \$2,100 (op. 1/1/25); \$2,190 (op. 1/1/26); \$2,240 (op. 1/1/27) per month.

Professionals (external redistribution by distributor through a controlled device).

\$1,580 (op. 1/1/25); \$1,640 (op. 1/1/26); \$1,680 (op. 1/1/27) per month per distributor. \$10 per month per controlled device. Each distributor's combined maximum fee is capped at \$2,630 (op. 1/1/25); \$2,740 (op. 1/1/26); \$2,800 (op. 1/1/27) per month.

Non-Professional (external redistribution by distributor through a controlled device).

\$1,500 per month per distributor. \$1 per month per controlled device. Each distributor's combined maximum fee is capped at \$2,500 per month.

* A distributor is any firm that receives the Nasdaq GEMX Real-time Depth of Market Raw Data Feed directly from Nasdaq GEMX or indirectly through a redistributor and then distributes it either internally or externally. A redistributor includes market data vendors and connectivity providers such as extranets and private network providers.

** A controlled device is any device that a distributor of the Nasdaq GEMX Real-time Depth of Market Raw Data Feed permits to

access the information in the Nasdaq GEMX Real-time Depth of Market Raw Data Feed.

Hardware-Based Delivery of Real-time Depth of Market Raw Data Feed.

The charges to be paid by Distributors for processing the Real-time Depth of Market Raw Data Feed using hardware-based delivery technology, in addition to other applicable fees in this section, shall be:

Hardware-Based Delivery	Monthly Fee
Internal Only Distributor	\$8,000 Per Distributor
External Only Distributor	\$1,000 Per Distributor
Internal and External Distributor	\$9,000 Per Distributor

The term "Hardware-Based Delivery" means that a distributor is processing data sourced from a hardware-coded market data format such as field-programmable gate array ("FPGA") technology.

D. Nasdaq GEMX End of Day Trade Outline

Subscription - \$575 per month.

Ad-hoc requests (historical data) - \$400 per request per month. An ad-hoc request can be made for any number of months, beginning in August 2013, for which data is available.

E. Nasdaq GEMX Intraday Trade Outline

Subscription - \$1,500 per month.

Ad-hoc requests (historical data) - \$750 per request per month. An ad-hoc request can be made for any number of months, beginning in August 2013, for which data is available.

F. Nasdaq GEMX Trade Outline Historical Data

Account Type	Fee
Historical Data for Current End of Day Product Distributors:	\$4,800 for the most recent 36 months
Historical Data for Current Intra-Day Product Distributors:	\$9,000 for the most recent 36 months

The most recent 36 months is measured based on the date of purchase of the 36 months of data by a Current Distributor.

A "Current Distributor" is any firm that purchases either the End of Day Product for the current month, or the Intra-Day Product for the current month in the same month that the 36 months of historical End of Day or Intra-Day data is ordered.

G. Nasdaq GEMX Trade Outline External Distribution of Derived Data

Unlimited External Distribution of Derived Data from GEMX Trade Outline: \$3,000 per month

Fees for external distribution of Derived Data from GEMX Trade Outline are in addition to fees for the End of Day product or the Intraday product, or both, as applicable.

"Derived Data" is any information generated in whole or in part from Exchange Information such that the information generated cannot be reverse engineered to recreate Exchange Information, or be used to create other data that is recognizable as a reasonable substitute for such Exchange Information.

"Exchange Information" is any data or information that has been collected, validated, processed and/or recorded by the Exchange and made available for transmission relating to: (i) eligible securities or other financial instruments, markets, products, vehicles, indicators or devices; (ii) activities of the Exchange; or (iii) other information or data from the Exchange. Information includes, but

is not limited to, any element of information used or processed in such a way that Exchange Information or a substitute for such Information can be identified, recalculated or re-engineered from the processed information.

H. Nasdaq GEMX Trade Feed

\$520 (op. 1/1/25); \$535 (op. 1/1/26); \$543 (op. 1/1/27) per month for unlimited internal and/or external distribution of GEMX Trade Feed.

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Section 8. Sales Value Fee

The Sales Value Fee is assessed by the Exchange to each Member for sales on the Exchange with respect to which the Exchange is obligated to pay a fee to the Commission under Section 31 of the Exchange Act. To the extent that there may be any excess monies collected under this Rule, the Exchange may retain those monies to help fund its general operating expenses. The sales transactions to which the fee applies are sales of options (other than options on a security index) and the sales of securities resulting from the exercise of physical-delivery options. The fee is collected indirectly from Members through their clearing firms by the Clearing Corporation on behalf of Nasdaq GEMX with respect to options sales and options exercises. The Sales Value Fee is equal to (a) the Section 31 fee rate multiplied by (b) the Member's aggregate dollar amount of covered sales resulting from options transactions occurring on the Exchange during any computational period.

[Adopted June 27, 2019 (SR-GEMX-2019-08).]